

03_General_Conditions_of_Contract

ALDRIDGE HARBOR PORT AUTHORITY

KESSLER POINT MARINE TERMINAL — PERIMETER SECURITY, ACCESS CONTROL AND SURVEILLANCE SYSTEMS

DOCUMENT 3 OF 13 — GENERAL CONDITIONS OF CONTRACT

Solicitation Number	AHPA-2026-IFB-0417
Document Revision	Rev 0
Date	14 September 2026

1. DEFINITIONS AND INTERPRETATION

- GCC-1.1** “Authority” means the Aldridge Harbor Port Authority, a body corporate.
- GCC-1.2** “Contractor” means the entity to whom the Contract is awarded.
- GCC-1.3** “Contract Price” means the lump sum stated in the Contract, as adjusted by Variation.
- GCC-1.4** “Final Acceptance” has the meaning given at SOW-9.7.
- GCC-1.5** “Site” means Kessler Point Marine Terminal and such other areas as the Authority may designate.
- GCC-1.6** Headings are for convenience only and shall not affect construction.

2. CONTRACT DOCUMENTS

- GCC-2.1** The Contract comprises the documents listed at ITB-4.1, together with every Addendum issued, the Contractor’s bid as accepted, and the Notice of Award.
- GCC-2.2** In the event of conflict, the order of precedence at ITB-4.2 applies.
- GCC-2.3** The documents are complementary. What is required by one is as binding as if required by all.

3. CONTRACTOR’S GENERAL OBLIGATIONS

- GCC-3.1** The Contractor shall execute and complete the Works and remedy all defects in accordance with the Contract.
- GCC-3.2** The Contractor shall provide all superintendence, labour, materials, plant, transport, temporary works, consumables and other things necessary for the Works.
- GCC-3.3** The Contractor shall be deemed to have inspected the Site, examined all Contract Documents, and satisfied itself as to the nature of the Works, the conditions under which they will be executed, and all matters affecting the execution and cost of the Works.
- GCC-3.4** The Contractor shall be deemed to have included in the Contract Price for every cost arising from the operational nature of the Site, including but not limited to escort of personnel, security screening, restricted working hours, standby and abortive time caused by terminal operations, and compliance with the Facility Security Plan.
- GCC-3.5** No claim arising from any matter within GCC-3.3 or GCC-3.4 shall be entertained.
- GCC-3.6** The Contractor shall comply with all applicable federal, state and local law, and with the requirements of the United States Coast Guard, the Transportation Security Administration and US Customs and Border Protection as they affect the Site.

4. AUTHORITY’S OBLIGATIONS

- GCC-4.1** The Authority shall give the Contractor access to the Site in accordance with the approved phasing plan.
- GCC-4.2** The Authority will review submittals and design submissions and will respond in due course.
- GCC-4.3** The Authority will issue sector releases as terminal operations permit.

GCC-4.4 Nothing in this Clause 4 shall create an obligation on the Authority to act within any particular period.

5. TIME FOR COMPLETION AND LIQUIDATED DAMAGES

GCC-5.1 The Contractor shall achieve Final Acceptance within eighteen (18) months of the Notice to Proceed.

GCC-5.2 If the Contractor fails to achieve Final Acceptance by the date required, the Contractor shall pay to the Authority liquidated damages at the rate of **zero point five percent (0.5%) of the Contract Price for each week or part week of delay**.

GCC-5.3 Liquidated damages under GCC-5.2 shall accrue until Final Acceptance is achieved.

GCC-5.4 The Parties agree that the sums payable under GCC-5.2 are a genuine pre-estimate of the loss the Authority would suffer and are not a penalty.

GCC-5.5 The payment of liquidated damages shall not relieve the Contractor of its obligation to complete the Works, nor of any other liability under the Contract.

GCC-5.6 Liquidated damages under GCC-5.2 are in addition to, and not in substitution for, any liquidated damages payable under SOW-3.5 or under Clause 14 of these Conditions.

6. DELAY AND EXTENSION OF TIME

GCC-6.1 The Contractor may apply for an extension of time where completion is or will be delayed by: an act of prevention by the Authority; a Variation; a suspension ordered under Clause 12; or Force Majeure.

GCC-6.2 An application under GCC-6.1 shall be made within ten (10) days of the Contractor becoming aware of the event, shall state the grounds, and shall be supported by a programme impact analysis. An application not made within that period shall be time-barred and the Contractor's entitlement extinguished.

GCC-6.3 **The Contractor shall have no entitlement to any addition to the Contract Price, nor to any payment, compensation, loss or expense whatsoever, in respect of any delay, disruption, acceleration, prolongation or loss of productivity, however caused, including delay caused by the act, omission, default or breach of the Authority.** The Contractor's sole and exclusive remedy for delay shall be an extension of time.

GCC-6.4 Delay caused by the failure of a third party, including any provider of the Terminal Operating System or the Gate Operating System, shall not be grounds for an extension of time.

7. PAYMENT

GCC-7.1 The Contract Price is a lump sum and is not subject to adjustment for changes in the cost of labour, materials, currency or freight.

GCC-7.2 Payment shall be made against achievement of the following milestones:

Milestone	% of Contract Price
Notice to Proceed and bonds in place	5%
PDR approved	5%
CDR approved	10%
Batch 1 delivered to Site	10%
Head-end operational (M6)	15%
Perimeter complete (M7)	15%
Pre-Gate cutover achieved during a vessel-free window nominated by the Authority (M8)	15%
Site Acceptance Test complete (M9)	15%
Final Acceptance (M11)	10%

GCC-7.3 No advance payment shall be made.

GCC-7.4 The Authority shall retain **ten percent (10%)** of each payment.

GCC-7.5 Retention shall be released in full upon the expiry of the warranty period at SOW-12.1 and the closure of all outstanding defects, and not before.

GCC-7.6 The Contractor shall submit invoices with all supporting documentation including certified payrolls. The Authority shall pay within forty-five (45) days of receipt of a correctly rendered invoice.

GCC-7.7 Where the Authority disputes any part of an invoice, the whole invoice may be held pending resolution.

GCC-7.8 No payment shall be made in respect of equipment delivered to Site but not installed, save as expressly provided at GCC-7.2.

8. VARIATIONS

GCC-8.1 The Authority may order a Variation at any time.

GCC-8.2 The Contractor shall not be entitled to any adjustment to the Contract Price or the time for completion unless a Variation has been ordered in writing by the Authority prior to the work being performed.

GCC-8.3 Where a Variation is ordered, its value shall be determined using the rates in the Pricing Schedule where applicable, and otherwise by agreement, failing which by the Authority acting reasonably.

GCC-8.4 Overhead and profit on a Variation shall not exceed **ten percent (10%)** in aggregate.

GCC-8.5 The Contractor shall proceed with a Variation notwithstanding that its value has not been agreed.

9. DIFFERING SITE CONDITIONS

GCC-9.1 Where the Contractor encounters subsurface or latent physical conditions at the Site differing materially from those indicated in the Contract Documents, it shall notify the Authority in writing before such conditions are disturbed.

GCC-9.2 The Authority shall investigate and, if it determines that the conditions do so differ and cause an increase in cost or time, shall make an equitable adjustment.

GCC-9.3 No claim under this Clause 9 shall be allowed where notice was not given before the conditions were disturbed.

GCC-9.4 The Contractor shall be deemed to have allowed for the presence of buried services, obstructions, contaminated fill and dredged material within the Site, these being ordinary conditions at a marine terminal.

10. WARRANTY AND PERFORMANCE DURING WARRANTY

GCC-10.1 The Contractor warrants the Works for thirty-six (36) months from Final Acceptance in accordance with SOW-12.

GCC-10.2 Where the Contractor fails to meet a response or resolution time at SOW-12.3, the Contractor shall pay to the Authority the following sums:

Severity	Per hour beyond the resolution time
1	\$2,000
2	\$750
3	\$150
4	\$50

GCC-10.3 Sums payable under GCC-10.2 are in addition to, and not in substitution for, liquidated damages under GCC-5.2, and are not subject to any cap.

GCC-10.4 The Contractor shall maintain all software supplied under the Contract at a currently supported release and shall apply all security patches issued by the manufacturer throughout the warranty period.

GCC-10.5 Where a manufacturer withdraws support for any item during the warranty period, the Contractor shall replace that item with a supported equivalent at its own cost.

11. LIABILITY AND INDEMNITY

GCC-11.1 The Contractor shall indemnify, defend and hold harmless the Authority, its officers, employees, agents and board members against all claims, demands, losses, damages, costs and expenses of whatever nature arising out of or in connection with the performance of the Contract.

GCC-11.2 The indemnity at GCC-11.1 shall apply irrespective of any negligence or breach on the part of the Authority, save to the extent of the Authority's sole negligence.

GCC-11.3 The liability of the Contractor under this Contract shall be unlimited.

GCC-11.4 The Contractor shall be liable for all indirect, consequential, special and incidental losses, including loss of revenue, loss of profit, loss of use, business interruption, cost of substitute services, and any fine, penalty or civil penalty imposed on the Authority by any regulatory body

arising from an act or omission of the Contractor.

GCC-11.5 For the avoidance of doubt, GCC-11.4 includes any civil penalty imposed on the Authority under 33 CFR Part 101, 33 CFR Part 105, or 49 CFR Part 1520.

12. SUSPENSION AND TERMINATION

GCC-12.1 The Authority may suspend the Works in whole or in part at any time by notice. The Contractor shall be entitled to an extension of time but, subject to GCC-6.3, to no additional payment.

GCC-12.2 The Authority may terminate the Contract for its convenience at any time by notice. On such termination the Contractor shall be paid for work properly executed to the date of termination and for materials properly ordered, but shall have no claim for loss of profit on the unexecuted portion, nor for any other loss or expense.

GCC-12.3 The Authority may terminate for default where the Contractor fails to prosecute the Works with diligence, fails to remedy a breach within fourteen (14) days of notice, becomes insolvent, or is debarred or suspended from federal contracting.

GCC-12.4 On termination for default the Authority may complete the Works by any means and recover from the Contractor all costs of doing so in excess of the unpaid balance of the Contract Price, together with liquidated damages accruing in the meantime.

13. INSURANCE

GCC-13.1 The Contractor shall maintain, and shall require each subcontractor to maintain, the following insurances for the duration of the Contract and for six (6) years thereafter:

Cover	Minimum limit
Commercial General Liability, including marine operations	\$10,000,000 per occurrence
Workers' Compensation	Statutory
Longshore and Harbor Workers' Compensation Act coverage	Statutory
Maritime Employers' Liability / Jones Act	\$5,000,000
Automobile Liability	\$5,000,000
Professional Indemnity / Errors and Omissions	\$5,000,000
Contractors' All Risks	Full contract value
Cyber Liability	\$5,000,000

GCC-13.2 The Authority shall be named as additional insured on all policies save Workers' Compensation, and all policies shall contain a waiver of subrogation in favour of the Authority.

GCC-13.3 All policies shall be primary and non-contributory.

14. BONDS

GCC-14.1 The Contractor shall provide and maintain a performance bond and a payment bond each in the amount of one hundred percent (100%) of the Contract Price, in accordance with the applicable state statute and 2 CFR 200.326.

GCC-14.2 The Contractor shall provide a maintenance bond in the amount of ten percent (10%) of the Contract Price, valid for thirty-six (36) months from Final Acceptance.

GCC-14.3 Where the Contract Price increases by Variation, the Contractor shall increase the bonds correspondingly within fourteen (14) days, at its own cost.

15. CYBERSECURITY AND INFORMATION SECURITY

GCC-15.1 The Contractor shall comply with the requirements of Document 6.

GCC-15.2 The Contractor shall prepare and submit to the United States Coast Guard, for approval, the Cybersecurity Plan required by 33 CFR 101.630 in respect of the systems supplied under this Contract, and shall obtain such approval prior to Final Acceptance.

GCC-15.3 The Contractor shall designate a Cybersecurity Officer for the Works.

GCC-15.4 The Contractor shall report any reportable cyber incident in accordance with 33 CFR 101.645.

GCC-15.5 The Contractor is a covered person within the meaning of 49 CFR 1520.7 and shall comply with Annex C.

GCC-15.6 Any unauthorised disclosure of Sensitive Security Information by the Contractor shall constitute a material breach entitling the Authority to terminate for default.

16. INTEGRATION WITH THIRD-PARTY SYSTEMS

GCC-16.1 The Contractor shall integrate the Works with the Terminal Operating System and with the Gate Operating System in accordance with Document 5.

GCC-16.2 The Contractor shall be responsible for achieving the integration described at GCC-16.1, and shall be deemed to have satisfied itself as to the technical means by which it will do so.

GCC-16.3 The Authority will facilitate introductions to the relevant system providers.

GCC-16.4 The provisions of GCC-6.4 apply to any delay arising from a third-party system provider.

17. INTELLECTUAL PROPERTY

GCC-17.1 All designs, drawings, specifications, configurations and documentation prepared by the Contractor for the Works shall become the property of the Authority on payment.

GCC-17.2 The Contractor grants the Authority a perpetual, irrevocable, royalty-free licence to use, modify and reproduce all such materials for the operation, maintenance, repair, modification and extension of the Works.

GCC-17.3 The Contractor shall indemnify the Authority against any claim of infringement of intellectual property arising from the Works.

GCC-17.4 The Contractor shall place in escrow the source code of any bespoke software developed for the Works, with the Authority as beneficiary.

18. FORCE MAJEURE

GCC-18.1 Neither Party shall be liable for failure to perform where prevented by an event beyond its reasonable control, including act of God, hurricane, war, terrorism, or an order of a competent authority.

GCC-18.2 Shortage of labour, shortage of materials, failure of a supplier or subcontractor, and delay in obtaining any permit or approval shall not constitute Force Majeure.

GCC-18.3 The affected Party shall notify the other within five (5) days and shall use all reasonable endeavours to mitigate.

19. SUBCONTRACTING AND ASSIGNMENT

GCC-19.1 The Contractor shall not subcontract any part of the Works without the prior written approval of the Authority.

GCC-19.2 The Contractor shall remain fully responsible for the acts and omissions of every subcontractor.

GCC-19.3 The Contractor shall not assign the Contract or any benefit under it without the prior written consent of the Authority.

GCC-19.4 The Authority may assign the Contract to any successor body without consent.

20. FEDERAL PROVISIONS

GCC-20.1 The following clauses of the Federal Acquisition Regulation are incorporated by reference and apply to this Contract as if set out in full:

Clause	Title
FAR 52.204-24	Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment
FAR 52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment
FAR 52.222-6	Construction Wage Rate Requirements
FAR 52.222-8	Payrolls and Basic Records
FAR 52.222-26	Equal Opportunity
FAR 52.223-18	Encouraging Contractor Policies to Ban Text Messaging While Driving
FAR 52.236-2	Differing Site Conditions
FAR 52.243-4	Changes
FAR 52.249-2	Termination for Convenience of the Government (Fixed-Price)

GCC-20.2 The Contractor shall comply with the Build America, Buy America Act and shall provide documentation evidencing domestic content for all iron, steel, manufactured products and construction materials.

GCC-20.3 The Contractor shall flow down all provisions of this Clause 20 and of 2 CFR Part 200 Appendix II to every subcontract.

GCC-20.4 The Contractor shall permit the Authority, the Federal Emergency Management Agency, the Department of Homeland Security and the Comptroller General access to its books and records relating to the Contract, and shall retain such records for three (3) years after final payment.

21. DISPUTES AND GOVERNING LAW

GCC-21.1 The Contract shall be governed by the law of the State in which the Site is located.

GCC-21.2 The Parties shall first attempt to resolve any dispute by negotiation between senior representatives.

GCC-21.3 Failing resolution within thirty (30) days, the dispute shall be referred to the Authority's Executive Director, whose determination shall be final and binding unless the Contractor commences proceedings within ninety (90) days.

GCC-21.4 Proceedings shall be brought exclusively in the state courts of the State in which the Site is located.

GCC-21.5 The Contractor shall continue to perform the Works during any dispute.

END OF DOCUMENT 3